(e) **Lack of uniformity of implementation in cases that have attained finality.** Litigation also increases when cases settled judicially and which have attained finality either at the High Court or Supreme Court level are not implemented for similarly placed employees, thereby leading to more litigation on similar issues. The compounded cost of litigation at times surpasses the final financial effect on the Government.

Another case where the Ministry entered into unnecessary litigation pertains to the anomaly in the pay of Brigadiers and Maj Gens. When I got promoted to Maj Gen, Veena had asked me how much more pay would I get. I replied that actually, I would now be getting Rs 12,000 less. That's ridiculous, she had replied, how could a junior get more pay than his senior? Very simple logic, no doubt, but something that the powers-that-be refused to admit. This situation prevails because, in addition to other ranks, all officers up to the rank of Brigadier are entitled to a Military Service Pay (MSP), depending on rank. A Brigadier gets the maximum of Rs 15,500. The MSP was first approved in the Sixth Pay Commission, with the caveat that it would stop once an individual is promoted to the rank of Major General, thus resulting in the anomaly of a Brigadier getting more pay than a Maj Gen. To address this long-pending issue, a 'personal pay' of Rs 14,900 has been proposed to be added to the pay of Maj Gens to bring them at par with Brigadiers. This proposal has been endorsed by the MoD (Finance) but the file has been pending with the Ministry of Finance since January 2022. In the intervening decade or so, hundreds of Maj Gens (myself included) have been denied their rightful dues, with a few having even passed away. A similar situation prevails with respect to the Non-Functional Upgrade (NFU) for the Armed Forces.

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